

TOUR AGREEMENT

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This Tour Agreement (this "**Agreement**") is entered into as of [EFFECTIVE DATE] (the "**Effective Date**") by and between:

[ARTIST / BAND LEGAL NAME], an individual residing at (or an entity with its principal place of business at) [ARTIST ADDRESS] ("**Artist**"); and

[PROMOTER / TOUR COMPANY LEGAL NAME], a [STATE] [ENTITY TYPE] with its principal place of business at [PROMOTER ADDRESS] ("**Promoter**").

Artist and Promoter are each a "**Party**" and together the "**Parties**."

Recitals. Promoter wishes to present and produce a tour of live performances by Artist, and Artist wishes to perform on that tour, on the terms below. This Agreement covers the tour engagements; individual shows may also be documented by venue or local promoter contracts that incorporate these terms. In consideration of the mutual promises below, the Parties agree as follows.

1. The Tour

1.1 Tour. "**Tour**" means the series of live performances by Artist titled "[TOUR NAME]" at the dates, cities, and venues listed in [EXHIBIT A, the tour routing], comprising approximately [NUMBER] shows between [START DATE] and [END DATE].

1.2 Performances. At each show, Artist will perform a set of not less than [LENGTH, e.g. 75 minutes], subject to venue curfews, force majeure, and reasonable production constraints. The set list and arrangement are within Artist's creative control.

1.3 Routing changes. Promoter may propose adjustments to the routing in Exhibit A on reasonable notice; material changes to dates, markets, or show count require Artist's written approval.

1.4 Support acts. Selection of opening or support acts requires Artist's [approval / consultation]. Promoter will handle support-act contracting and compensation unless otherwise agreed.

2. Compensation and Settlement

2.1 Artist compensation. For each show, Artist will receive [a guarantee of [AMOUNT] / a guarantee of [AMOUNT] plus [PERCENTAGE]% of net box-office receipts over the breakeven point / [PERCENTAGE]% of net tour profit] (the "**Artist Compensation**").

2.2 Deposits. Promoter will pay a deposit of [AMOUNT OR PERCENTAGE] per show no later than [NUMBER] days before the show date, with the balance due at settlement on the night of the show.

2.3 Settlement. The Parties (or their representatives) will settle each show after the performance based on verified box-office statements and documented show expenses. Promoter will make settlement records available

for Artist's reasonable inspection.

2.4 Expenses and splits. "Show Expenses" means pre-approved, documented costs of presenting a show (venue rent, local production, marketing, ticketing fees, and similar). Allocation of Show Expenses and any profit split are set in [EXHIBIT B].

2.5 Tour costs. Responsibility for tour-wide costs, transportation, lodging, crew, equipment rental, and per diems, is allocated as set out in [EXHIBIT B].

2.6 Late payment. Undisputed amounts not paid when due accrue interest at the lesser of [e.g. 1.5%] per month or the maximum rate permitted by applicable law.

3. Production, Travel, and Logistics

3.1 Technical rider. Promoter will satisfy the technical and hospitality requirements in Artist's rider, attached as [EXHIBIT C], including sound, lighting, backline, stage dimensions, dressing rooms, and security, or notify Artist promptly of any item it cannot meet.

3.2 Travel and lodging. Responsibility for arranging and paying for Artist and crew travel, ground transport, and lodging is allocated in [EXHIBIT B]. The responsible Party will provide itineraries reasonably in advance.

3.3 Crew and personnel. Each Party is responsible for its own personnel, including their compensation, taxes, insurance, and conduct. Artist's touring crew remain Artist's personnel.

3.4 Permits and compliance. Promoter will obtain venue permits, licenses, and any required performance-rights clearances for each show, and will comply with local health, safety, and noise regulations.

4. Ticketing and Marketing

4.1 Ticketing. Promoter will manage ticketing, pricing (subject to Artist approval of price tiers), on-sale timing, and complimentary-ticket allotments, including Artist's holds of [NUMBER] tickets per show.

4.2 Marketing. Promoter will advertise and promote each show using approved Artist name, likeness, and marks. Artist grants Promoter a limited license to use Artist's approved promotional materials solely to advertise the Tour.

4.3 Approvals. Artist has reasonable approval over use of its name, image, and likeness in Tour advertising. Promoter will not imply endorsement of any third-party product without Artist's consent.

5. Cancellation and Force Majeure

5.1 Force majeure. Neither Party is liable for failure to perform a show due to events beyond its reasonable control (e.g. illness, severe weather, government order, venue closure, or public-safety emergency). The Parties will use reasonable efforts to reschedule affected shows.

5.2 Cancellation by Artist. If Artist cancels a show other than for force majeure or Promoter's breach, Artist will refund deposits for that show and the Parties will cooperate to mitigate losses.

5.3 Cancellation by Promoter. If Promoter cancels a show other than for force majeure or Artist's breach, Promoter will pay Artist [the guarantee for that show / [PERCENTAGE]% of the guarantee] as agreed compensation.

5.4 Illness/no-show. If Artist cannot perform due to documented illness or injury, the affected show will be rescheduled where practicable; deposits will be credited to the rescheduled date.

6. Insurance and Indemnification

6.1 Insurance. Each Party will maintain commercially reasonable insurance for its activities, including, for Promoter, general liability covering each venue, with limits of at least **[AMOUNT]**. Certificates will be provided on request.

6.2 By Promoter. Promoter will defend and indemnify Artist against third-party claims arising from venue conditions, show production, crowd management, or Promoter's breach, except to the extent caused by Artist.

6.3 By Artist. Artist will defend and indemnify Promoter against third-party claims arising from Artist's performance content, conduct, or breach, except to the extent caused by Promoter.

6.4 Limitation. Except for indemnity obligations and a Party's gross negligence or willful misconduct, neither Party is liable for indirect, incidental, special, consequential, or punitive damages.

7. Recording, Merchandise, and Ancillary Rights

7.1 Recording. No audio or video recording of a performance for commercial release may be made without Artist's prior written consent. Artist retains all rights in recordings of its performances.

7.2 Merchandise. Artist (or its designee) controls the sale of Artist merchandise at shows. Any venue merchandising fee or hall-fee split is set in **[EXHIBIT B]**.

7.3 Reservation. All rights not expressly granted, including recording, streaming, publishing, and merchandising rights, are reserved to Artist.

8. Term, Termination, and Default

8.1 Term. This Agreement runs from the Effective Date through completion of the final show and settlement, unless terminated earlier under this Section.

8.2 Default. If a Party materially breaches and fails to cure within **[NUMBER, e.g. 7]** days of written notice, the non-breaching Party may terminate the remaining Tour and pursue available remedies, subject to Sections 5 and 6.

8.3 Survival. Sections 2 (accrued amounts), 6, 7, and 9 survive termination.

9. General Provisions

9.1 Independent contractors. The Parties are independent contractors. Nothing creates a partnership, joint venture, agency, or employment relationship.

9.2 Governing law and venue. This Agreement is governed by the laws of the State of **[STATE]**, without regard to conflict-of-laws rules. The Parties submit to the exclusive jurisdiction of the state and federal courts located in **[COUNTY, STATE]**.

9.3 Assignment. Neither Party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all assets, on written notice.

9.4 Notices. Notices must be in writing and sent to the addresses above (or as updated in writing) and are effective on receipt.

9.5 Entire agreement; amendment. This Agreement, with its exhibits, is the entire agreement on its subject and supersedes prior discussions. It may be amended only by a writing signed by both Parties.

9.6 **Severability and waiver.** If any provision is unenforceable, the rest remains in effect. A Party's failure to enforce a provision is not a waiver.

9.7 **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original and all of which together form one agreement.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

ARTIST	PROMOTER
Signature: _____	Signature: _____
Printed name: [NAME]	Printed name: [NAME]
Title: [TITLE / N/A]	Title: [TITLE]
Date: _____	Date: _____

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